

2:00 PM LINE 6

25-CIV-09348

RONNELL BUTLER, ET AL VS. THE NORTHWESTERN MUTUAL LIFE INSURANCE
COMPANY, ET AL

RONNELL BUTLER
THE NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY

MICHAEL C. COHEN
MICHAEL BEHBOUD

DEFENDANT NORTHWESTERN MUTUAL LIFE INSURANCE COMPANY’S DEMURRER TO PLAINTIFFS’ FIRST AMENDED
COMPLAINT

TENTATIVE RULING:

Matter is **CONTINUED** to **November 12, 2026 at 2:00 p.m. in Department 2.**

If the tentative ruling is uncontested, it shall become the order of the Court.

2:00 PM LINE 7

25-CLJ-09900

IVER CAPITAL CORPORATION VS. ALONDRA MORALES

IVER CAPITAL CORPORATION
ALONDRA MORALES

ALI NABAVI
PRO PER

MOTION OF PLAINTIFF FOR JUDGMENT ON THE PLEADINGS AGAINST DEFENDANT ALONDRA MORALES

TENTATIVE RULING:

Plaintiff Iver Capital Corporation's unopposed Motion for Judgment on the Pleadings is **GRANTED WITHOUT LEAVE TO AMEND** pursuant to Code of Civil Procedure section 438, subdivision (c)(1)(A).

As a preliminary matter, the Court notes that Department 2 is located in Courtroom K at the Northern Branch, 1050 Mission Road, South San Francisco, California 94080.

A motion for judgment on the pleadings is governed by essentially the same standard as a general demurrer. The Court is confined to the face of the challenged pleadings and matters properly subject to judicial notice and does not consider extrinsic evidence. (*Shea Homes Limited Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254; *Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515–516; *Sykora v. State Department of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534.) A plaintiff is entitled to judgment on the pleadings where the complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 438, subd. (c)(1)(A); *Allstate Insurance Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330–331.)

Here, Plaintiff's Complaint alleges causes of action for breach of contract and common counts arising from Defendant Alondra Morales's purchase of a 2016 Dodge Challenger under an agreement with Plaintiff's predecessor in interest, Veros Credit LLC f/k/a Veros. Defendant's Answer, filed February 4, 2026, admits all allegations of the Complaint and asserts no matter constituting a defense. Defendant filed no opposition to the present motion, has not requested leave to amend, and has identified no facts suggesting that the deficiency in the Answer could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND**, and judgment shall be entered forthwith. (Code Civ. Proc., § 438, subd. (h)(3).)

Judgment shall be entered in favor of Plaintiff and against Defendant in the principal amount of **\$5,396.56**, together with prejudgment interest **in the amount established under the applicable contractual or statutory rate**, attorney's fees, if properly recoverable and established, and costs as allowed by law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.
